

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case Nos. 2012-4422 & 2012-5107

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF ERIN
DOLGAN, LPC, LICENSE NO. 3725,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners ("the Board") and Erin Dolgan, LPC, ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of case numbers 2012-4422 and 2012-5107 without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2012-4422 and 2012-5107. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. In or around July, 2011, Respondent submitted a draft Offense Specific Evaluation ("OSE") to the attorney for the client DS.
 - b. Respondent did not have the authority from the Sex Offender Management Board ("SOMB") to submit final OSEs or Parental Risk Assessments ("PRA");
 - c. In or around October, 2011, Respondent submitted to DS's attorney an OSE and PRA that was completed by DA and approved by JL who were authorized by SOMB to perform the evaluation and assessment. The OSE and PRA were submitted to the Court by DS's attorney.
 - d. Subsequently, Respondent submitted to DS's attorney an amended OSE and PRA which DS's attorney submitted to the Court. The Amended OSE and PRA contained

changes that enabled DS to remain in the home with her children and potentially put those children at risk.

e. Respondent should not have involved herself with the findings from the OSE and PRA.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §§ 12-43-222(1)(g) and (h), C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for five (5) years commencing from the effective date of this Order or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order. If at any time Respondent is not in compliance with the terms and restrictions of probation, including a practice monitor in place, Respondent shall cease the practice of professional counseling.

8. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Respondent is not currently practicing professional counseling and has let her license lapse because she has discontinued her practice of professional counseling. She shall report to the Board if she seeks to reinstate her license and resume the practice of professional counseling.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a licensed professional counselor in the State of Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PRACTICE MONITOR

12. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Should Respondent seek to reinstate her license and resume the practice of professional counseling she shall at the same time submit, in writing, three proposed practice

monitors for the Board's approval. Respondent shall include a Board-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The proposed practice monitors shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado; and
- b. It is recommended that the practice monitor have a minimum of five years experience and not have been subject to professional discipline; and
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

13. Respondent must have a practice monitor approved by the Board prior to resuming the practice of professional counseling. If this requirement is not satisfied, Respondent may not resume the practice of professional counseling.

14. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for practice monitoring. Respondent shall not perform any act requiring a license to practice professional counseling until such time as the Board has approved Respondent's practice monitor, and Respondent and the practice monitor have entered into a written contract for monitoring.

15. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, all investigative reports, and all practice evaluation reports; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for at least one hour, or such longer time as the practice monitor deems necessary and take place at least one session for every twenty hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

17. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

18. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice, her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

19. If the Board determines from the practice evaluation report that Respondent cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice and/or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease the practice of professional counseling or any part of the practice that the Board determines, based on the practice evaluation report, she is not qualified, competent, and/or safe to conduct. Based on the Board's findings and the practice evaluation report, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and/or safe to practice. Once Respondent satisfies the Board that she is qualified, competent, and/or safe to fully practice, Respondent may resume full practice.

20. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

21. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, and/or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, the Board will make the determination as to whether or not Respondent is able to practice with reasonable skill and safety and whether emergency action should be taken under § § 24-4-104 and 12-43-224(2) (c) (II), C.R.S .

22. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

23. Either Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order. If Respondent does not have another practice monitor in place before the termination date, Respondent shall

cease the practice of professional counseling until she has another Board-approved practice monitor in place.

CONTINUING EDUCATION

24. During the period of probation, Respondent must successfully complete at least twenty (20) hours each year of Board-approved professional continuing education courses in the areas of professional ethics, documentation and forensic reporting. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is mailed to the Board.

25. During the first year of probation, Respondent must complete the ProBE Problem-Based Ethics course and obtain an unconditional passing result. Respondent agrees to advise the Board of the dates on which she will be taking the course. In the event that Respondent does not obtain an unconditional passing result, Respondent shall cease practicing professional counseling until such time as respondent obtains an unconditional passing result.

PRACTICE RESTRICTION

26. During the period of Respondent's probation, Respondent's practice shall be restricted. During said period, Respondent shall not engage in the practice of professional counseling with any person under the age of eighteen (18) years or with any sex offender.

TERMS AND CONDITIONS

27. Respondent will strictly observe the prohibitions set forth in §12-43-222(1), C.R.S., of the Mental Health Practice Act, and will ensure that she practices in accordance with the generally accepted standards of practice.

28. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

29. All expenses incurred or associated with practice monitoring, continuing education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

30. During the pendency of this Order, Respondent agrees that she will provide permission to and allow her practice monitor to provide records and information obtained in the normal course of practice monitoring to the Board if the practice monitor determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care. As part of this Order, Respondent expressly waives her right to maintain confidentiality of records or information provided to the practice monitor in the normal course of practice monitoring if the practice monitor determines that she is not practicing professional counseling in accordance with

generally accepted standards of practice and/or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care.

31. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

32. Respondent is fully aware of and understands the right to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives that right. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

33. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

34. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

35. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

36. Respondent shall obey all municipal, state, and federal laws while this Order is in effect.

37. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

38. This Order shall become effective when accepted and signed on behalf of the Board.

39. This Order shall be admissible as evidence at any hearing held before the Board.

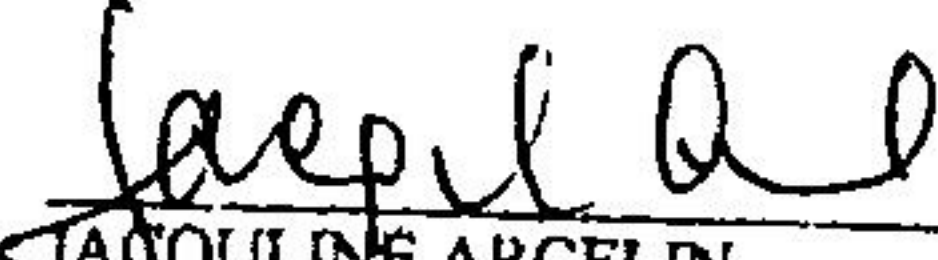
40. This Order shall be a public record in the custody of the Board.

RESPONDENT


ERIN DOLGAN, LPC,
License No. 3275

Dated: JUNE 1, 2016

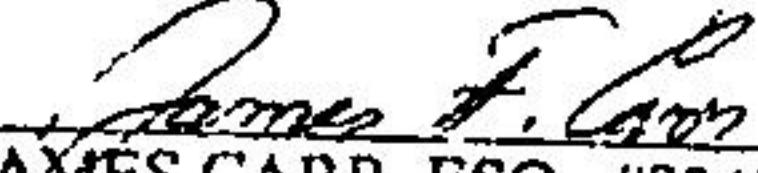
COLORADO STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


JACQUILINE ARCELIN
Senior Advisor to the Deputy director
Healthcare Branch

Effective Date: This 9 day of
June, 2016.

APPROVED AS TO FORM:

FOR RESPONDENT


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